CFI 081/2024 Kitopi Catering Services LLC v Mons Hospitality FZE

MARCH 03, 2026 COURT OF FIRST INSTANCE - ORDERS

Claim No: CFI 081/2024

IN THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS

IN THE COURT OF FIRST INSTANCE

BETWEEN

KITOPI CATERING SERVICES LLC

Claimant

and

MONS HOSPITALITY FZE

Defendant

ORDER WITH REASONS H.E. JUSTICE ROGER STEWART KC

UPON the Judgment of H.E. Justice Roger Stewart KC dated 4 February 2026 (the "Judgment")

AND UPON the parties having mutually agreed to extend deadlines set out in paragraphs 2 and 3 of the Judgment

AND UPON the Consent Order dated 10 February 2026 extending the deadline in paragraphs 2 and 3 of the Judgment (the "Consent Order")

AND UPON the parties having been unable to agree on interests and costs by the dates stipulated in the Consent Order

AND UPON the parties having mutually agreed to a further extension of time for the filing of submissions from 25 February 2026 to 6 March 2026

AND UPON the parties disagreeing as to whether the principal judgment sum should be paid together with a payment on account of costs as set out in an email dated 25 February 2026

IT IS HEREBY ORDERED THAT:

1. The parties shall provide submissions in relation to paragraphs 2 and 3 of the Judgment related to interests and costs by no later than **4pm (GST) on Friday, 06 March 2026**.

2. The Defendant shall:

(a) pay the principal sum awarded pursuant to the Judgment in the amount of AED 725,047 within seven (7) days of the date of this Order; and

(b) pay 50% of the Claimant's costs on account in the amount of AED 550,000 within seven (7) days of the date of this Order.

Issued by:

Delvin Sumo
Assistant Registrar
Date of Issue: 3 March 2026
At: 11am

SCHEDULE OF REASONS

1. The parties have jointly agreed to extend time for submissions on cost and interest but are in dispute as to whether there should be an order for payment of the principal sum and an interim order for payment of 50% of Kitopi's costs. The reasons for this disagreement are summarised in an email from Mr Turner of 25 February.

2. In relation to the payment of the principal sum, I consider:

(a) That the only reason why the principal sum should not be paid would be if there were proper grounds for a stay pending appeal;

(b) Mons has not put forward any such grounds and has not issued any application for a stay pending appeal; and

(c) Given the length of time since the Judgment was handed down, the principal sum should be paid without further delay.

3. In relation to a payment on account of costs:

(a) It appears plain that Kitopi is the substantial victor in the proceedings and will be the beneficiary of a costs order for all or the substantial majority of its costs;

(b) The overall costs are modest particularly compared with those incurred by Mons;

(c) The normal order will be for an interim payment of 50% of such costs; and

(d) There appears to be no reason to depart from such order.